

Mutual NDA

A balanced two-way confidentiality agreement for early business discussions.

EFFECTIVE DATE	FIRST PARTY LEGAL NAME
SECOND PARTY LEGAL NAME	GOVERNING STATE OR JURISDICTION

Purpose The parties expect to discuss a possible business relationship and may exchange confidential information solely to evaluate or pursue that relationship.

Confidential information Confidential information includes non-public business, product, technical, customer, financial, and operational information disclosed in any form and reasonably understood to be confidential.

Exclusions Confidential information does not include information the recipient can document was already known without restriction, becomes public without breach, is received lawfully from another source, or is independently developed.

Use and protection Each recipient will use confidential information only for the stated purpose, protect it with reasonable care, and disclose it only to representatives who need it and are bound by comparable duties.

Required disclosure A recipient may disclose information when legally required after giving prompt notice when permitted and reasonably assisting efforts to limit disclosure.

Return and term On request, each recipient will return or destroy confidential material, subject to routine backups and legal retention. These duties continue for three years, while trade-secret duties last as long as the information remains a trade secret.

No license or commitment No intellectual-property license is granted, and neither party is required to proceed with a transaction. Information is provided without warranties except as stated in a later written agreement.

SIGNATURES

FIRST PARTY	SECOND PARTY
Signature	Signature
Date	Date